



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9907 (EXTENSION)
ORIGINAL February 23, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9907 is hereby extended by changing the expiration date in paragraph 10 from June 15, 1988 to May 15, 1990.

This extension applies only to party(s) listed below based on the application(s) received in accordance with 49 CFR 107.105 and the public proceeding thereon. All other terms of the exemption remain unchanged. This extension forms part of the exemption and must be attached to it.

for Donald R. Smith

Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

MAY 31 1988

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

General Defense Corporation
York, PA

March 28, 1988



U.S. Department
of Transportation

**Research and
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FEB 23 1988

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DOT-E 9907

1. General Defense Corporation, York, Pennsylvania, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of class A explosives for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of unfuzed explosive projectiles, class A explosive, in non-DOT specification packagings, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on General Defense Corporation's application of December 22, 1987, submitted in accordance with 49 CFR 107.103, based on a serious economic loss.

3. HAZARDOUS MATERIALS (Descriptor and class). Unfuzed explosive projectiles (8 inch M106 and 155 mm M107), classed as class A explosives.

4. PROPER SHIPPING NAME (49 CFR 172.101). Explosive projectile.

5. REGULATION AFFECTED. 49 CFR 173.56(a) and (c)(1).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is palletization, 8 rounds per pallet for the M107 projectile, and 6 rounds per pallet for the M106 projectile, in accordance with applicable Department of Defense (DOD) drawings, identified as ARDC 9362569 for the M107 projectile and ARDC 9341621 for the M106 projectile, on file with the application in the Office of Hazardous Materials Transportation (OHMT).

8. SPECIAL PROVISIONS.

a. Shipment must:

1. Be prepared and offered to the carrier in accordance with DOD safety requirements.
2. Originate at the Kansas Army Ammunition Plant, Parsons, Kansas, destined for a port of export or a proving ground.
3. Be made in carload or truckload lots.

b. Shipment is pursuant to a non-DOD third party sale involving the holder of this exemption and the country of Jordan.

c. In lieu of 49 CFR Part 107, Appendix B(1), each motor vehicle must be conspicuously marked on the right side, near the front, in letters at least 2 inches high, "DOT-E 9907"

d. A copy of this exemption must be carried aboard each motor vehicle and cargo vessel used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. June 15, 1988.

Issued at Washington, D.C.:

Elaine Economides, Deputy Director
Alan I. Roberts

2/23/88
DATE

Director
Office of Hazardous Materials
Transportation

Address all inquiries to: Director, Office of Hazardous Materials
Transportation, Research and Special Programs Administration, U.S.
Department of Transportation, Washington, D.C. 20590. Attention:
Exemptions Branch.

Dist: FHWA, FRA